

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

July 13, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

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50.		
51.	Lee v. Yaling Zhou, Trustee of the Yaling Family Trust Dated June 15, 2023 2025-01499696	Plaintiff Jacky Lee's motion for leave to file a third amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiff is ORDERED to separately file a copy of the proposed third amended complaint within two court days. The third amended complaint must be filed as a separate document to ensure it is properly indexed in the record. Plaintiff is also ordered to serve the third amended complaint. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
52.	Or v. Eyedeology Optometry 2024-01409445	Plaintiffs Lok Or, Shahrzad Yazdan, and Wendy Pham's Motion for Leave to File a Second Amended Complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiffs are ORDERED to separately file a copy of the proposed second amended complaint within two court days. The second amended complaint must be filed as a separate document to ensure it is properly indexed in the record. Plaintiffs are also ordered to serve the second amended complaint. The case management conference is scheduled for November 23, 2026 at 9:00 a.m. in Department C28. The order to show cause is discharged. Plaintiffs shall give notice of this ruling.
53.	Ragland v. County of Orange 2023-01358379	Defendant County of Orange's demurrer to first amended complaint is SUSTAINED with 10 days leave to amend as to the 1st, 2nd, 3rd, and 5th causes of action for negligence, property damage/conversion, negligent infliction of emotional distress, and violation of the California Constitution, article I, § 1 (right to privacy); and SUSTAINED without leave to amend as to all other causes of action. Plaintiff Pam Ragland shall serve and file a second amended complaint, if any, by no later than Thursday 7/23/26.

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		<u>1st cause of action, negligence.</u> The first amended complaint (FAC) fails to state facts sufficient to constitute the first cause of action for negligence. Specifically, the FAC fails to plead the existence of a statutory duty imposing governmental liability for defendant's alleged negligence. All government tort liability must be based on statute. (Gov. Code, § 815, subd. (a); <i>McCarty v. State of California Dept. of Transp.</i> (2008) 164 Cal.App.4th 955, 977 ["a public entity cannot be held liable for common law negligence"]; <i>Wilson v. County of San Diego</i> (2001) 91 Cal.App.4th 974, 979-980.) In order to state a cause of action against a public entity, "every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty" imposing governmental liability. (See <i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802 (<i>Searcy</i>).) "Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (<i>Ibid.</i>) Contrary to plaintiff's contentions (see Opp. at p. 16), the FAC does not identify Government Code sections 815.2 or 815.6 as a statutory basis for liability under the first cause of action. The FAC makes no mention of section 815.2 at all and only cites section 815.6 as a basis for liability under the sixth cause of action for failure to perform mandatory duty. Furthermore, even if the FAC did cite Government Code sections 815.2 and 815.6 as a basis for liability under the first cause of action, these sections do not provide for governmental liability under the facts alleged. Section 815.2 provides that public entities are vicariously liable for the torts of their employees (Gov. Code, § 815.2, subd. (a)), but immune from liability where their employees are immune, except as otherwise provided by statute. (<i>Id.</i>, § 815.2, subd. (b).) And section 815.6 provides that a public entity is liable for its failure to discharge a "mandatory duty." (Gov. Code, § 815.6; see (<i>Haggis v. City of Los Angeles</i> (2000) 22 Cal.4th 490, 498 [mandatory duty].) Here, the FAC alleges "County owed Plaintiff statutory duties under Health & Safety Code §§ 17920.3, 17920.10 and Civil Code § 1941.1, and undertook a special duty to Plaintiff by responding to her reports [regarding the condition of the subject property]." (FAC ¶ 184; see <i>id.</i> ¶¶ 65-73.) The FAC alleges defendant breached these statutory duties by:

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		(1) Failing to timely and properly inspect the property and determine whether it was habitable and/or in compliance with Civil Code section 1941.1 and Health and Safety Code sections 17920.3 or 17920.10, and failing to timely red tag it accordingly. (See FAC ¶¶ 31-99, 185.) (2) Ordering SCE to shut off the electricity without notice to plaintiff. (<i>Id.</i> ¶¶ 116, 185-186.) (3) Disregarding plaintiff's quiet title claim to the back parcel of the property. (<i>Id.</i> ¶¶ 104-106, 133, 185.) (4) "[S]preading false narratives to justify their wrongful acts" and "violating plaintiff's privacy" by sharing plaintiff's "confidential unlawful detainer pleadings" and "private" letters to the county with the landlord. (<i>Id.</i> ¶ 185; see <i>id.</i> ¶¶ 104, 129-130, 144-166.) (5) Returning plaintiff's property tax payments for the back parcel of the property. (<i>Id.</i> ¶¶ 107-109, 187.) With respect to defendant's alleged failure to timely and properly inspect the property—it is true that a county that receives a complaint from a tenant regarding a potential violation of Health and Safety Code section 17920.3 (substandard building conditions) or 17920.10 (lead hazards) must inspect the subject building under Health and Safety Code section 17970.5. (Health & Saf. Code, § 17970.5, subd. (a).) However, that section expressly provides that <u>the county's obligation to inspect for these violations "shall not be construed to impose a mandatory duty pursuant to Section 815.6 of the Government Code, and shall not be construed to affect the availability of any immunity otherwise applicable to the city or county or its employees...."</u> (<i>Id.</i>, § 17970.5, subd. (i).) Further, <u>Government Code sections 818.6 and 821.4 provide that both public entities and public employees are immune from liability for the failure to make an inspection, or for the negligent inspection, of private property "for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety."</u> (Gov. Code, §§ 818.6 [public entity], 821.4 [public employee].) Thus, since public employees are immune from liability for any alleged failure to timely and/or properly inspect the subject property, defendant is also immune under section 815.2. (Gov. Code, §§ 815.2, subd. (b), 821.4; see <i>id.</i>, § 818.6.) And since the duty to inspect for the subject Health and Safety Code violations does not constitute a "mandatory duty" under section 815.6 or otherwise vitiate this immunity, section 815.6

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		also does not provide a basis for liability against defendant. (Health & Saf. Code, § 17970.5, subd. (i).) As for shutting off the electricity— by the time OCCE disconnected the power on 7/22/22 (FAC ¶ 116), plaintiff already had an unlawful detainer (UD) judgment as of 6/29/22 in favor of the landlord and was no longer a lawful tenant there (<i>id.</i> ¶¶ 98, 112, 136), and the property had been red-tagged as of 7/20/22, i.e., declared “to be unsafe and a public nuisance due to substantial building, fire, and health hazards” and ordered temporarily vacated. (<i>Id.</i> ¶¶ 60, 77, 112, 136, Ex. 3 [7/20/22 red-tag notice, 8/2/22 notice of unsafe conditions and building closure]; see also <i>id.</i> ¶¶ 32, 54, 74, 76, Ex. 3 [5/25/22 notice of violations].) After giving the landlord an opportunity to correct the substandard dwelling conditions and declaring the property a public nuisance (see <i>ibid.</i>), OCCE had the authority to take appropriate action to abate the nuisance under Health and Safety Code section 17980. (See Health & Saf. Code, §§ 17980, subds. (a), (c)(1)(A); see also Def. RJN at Ex. A [Orange County Codified Ordinance 7-1-16].) Defendant exercised that authority by temporarily ordering the entire location vacated and “disconnect[ing] [the] utilities to prevent further risk of fire, electrocution, explosion, or other damage ... in the interest of immediate public safety, pending the finality of this determination.” (FAC at Ex. 3 [8/2/22 notice of unsafe conditions and building closure; 5/25/22 prior notice of violations].) Both a public entity and public employee are “not liable for an injury caused by the issuance ... of ... any ... approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued” (Gov. Code, §§ 818.4, 821.2), “even [if] negligence is involved” (<i>id.</i>, § 818.4, Leg. Com. comm.). Defendant is therefore immune from liability arising from its order to shut off the electricity issued as part of its efforts to abate the nuisance under section 815.2 (see Health & Saf. Code, §§ 17980, subds. (a), (c)(1)(A)). As for the allegation that defendant “disregarded” plaintiff’s quiet title claim/ownership rights to the back parcel of the property, the allegations of the FAC show plaintiff’s “quiet title claim” or purported ownership interest to the back parcel of the property is based on adverse possession. (FAC at Ex. 1 [tort claim at ¶ 72.3 & ex. 2].) The FAC fails, however, to

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		allege any facts establishing an ownership interest to the back parcel by adverse possession. To be clear, California law does not require a plaintiff to bring an action to perfect his or her claim of adverse possession, and " '[t]itle to property acquired by adverse possession matures into an absolute fee interest after the [five-year] statutory prescriptive period has expired.' " (<i>Marriage v. Keener</i> (1994) 26 Cal.App.4th 186, 191-192; see Civ. Code, § 1007.) However, title by adverse possession requires plaintiff to establish, inter alia, that her possession and occupancy of the subject parcel was "adverse and hostile to [the owner]" for a continuous period of at least five years. (<i>Nellie Gail Ranch Owners Assn. v. McMullin</i> (2016) 4 Cal.App.5th 982, 1000 [adverse possession, elements].) Here, the FAC, which is verified under penalty of perjury, alleges facts admitting plaintiff's possession and occupancy of the back parcel was not "hostile and adverse" to the owner for the five years leading to her 2022 quiet title claim to that parcel of the property. For example, the FAC alleges plaintiff "rented" the "property" (FAC ¶ 16), which consists of both parcels (<i>id.</i> ¶ 18), pursuant to the terms of a lease—i.e., with permission from the owner—for at least five years starting on 3/1/14. (<i>Id.</i> ¶¶ 16-18; see also <i>id.</i> ¶¶ 19-24, 29-30 [alleging all subsequent foreclosures/transfers of the property purporting to divest the original owner of title were void].) A lease term of five years effective 3/1/14 would have ended on or about 2/28/19. Thus, at least until March 2019 (less than five years before 2022), plaintiff's possession and occupancy of the back parcel (based on the allegations in the FAC) was with the owner's permission pursuant to a lease, rather than "adverse and hostile" to the owner's title interest. The FAC also shows that at least through 2022, plaintiff repeatedly and openly claimed that the "owner"—as opposed to plaintiff, a mere "renter" or "tenant" of the property to whom the owner continued to owe certain landlord-tenant duties—was responsible for the back parcel of the property, and that plaintiff disclaimed any responsibility for its condition accordingly. All the foregoing allegations show that plaintiff's possession and occupancy of the back parcel was not in fact "hostile and adverse" to the owner's interest for a continuous period of five years prior to her 2022 quiet title claim or even the five years prior to the filing of this case in 2023, defeating any alleged

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		"quiet title" or adverse possession ownership interest in the back parcel. As for the remaining allegations that defendant spread "false narratives to justify their wrongful acts" (i.e., that plaintiff was dangerous/violent/mentally unstable and may get in the way of repair efforts), "violat[ed] plaintiff's privacy" by sharing plaintiff's "confidential unlawful detainer pleadings" and "private" letters to the county with the landlord, and improperly returned plaintiff's last tax payment for the back parcel—the FAC fails to identify any statutes, regulations, or any other law imposing a duty on the county to refrain from warning others about plaintiff's potential interference with repair/remediation efforts at the property, keep plaintiff's letters and pleadings private and confidential, or accept plaintiff's tax payment. The FAC further fails to identify any statutes imposing governmental liability for any of this conduct. (See <i>Searcy, supra</i>, 177 Cal.App.3d at p. 802.) Finally, while the FAC cites Health and Safety Code sections 17920.3 and 17920.10 and Civil Code section 1941.1 in support of the first cause of action (see FAC ¶ 184)—none of these statutes purport to impose any governmental liability or mandatory duties on a public entity such as defendant. (See Health & Saf. Code, §§ 17920.3 [substandard building conditions], 17920.10 [lead hazards], 17970.5, subd. (i); Civ. Code, § 1941.1 [setting forth conditions that render a dwelling "untenable" and imposing duties on the landlord].) Plaintiff also claims in her opposition that the FAC identifies Health and Safety Code section 17980.6 in support of the first cause of action (see Opp. at p. 16), but the FAC relies on this section only with respect to the sixth cause of action for "failure to perform mandatory duty (Gov. Code § 815.6)." (See FAC ¶¶ 247, 251, 259.) But even if the first cause of action did rely on section 17980.6, that statute does not purport to impose any governmental liability (see Health & Saf. Code, § 17980.6), and also does not impose any mandatory duties for purposes of liability under Government Code section 815.6 as a matter of law. (<i>Fox v. County of Fresno</i> (1985) 170 Cal.App.3d 1238, 1241, 1243-1244 [the duties imposed by Health and Safety Code section 17980 et seq. are discretionary and not mandatory].) <u>2nd cause of action, "personal property damage/conversion."</u> The FAC fails to state facts sufficient to constitute the second cause of action for personal property

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		damage/conversion. A tort claim for damages such as this one is barred by the Government Claims Act unless otherwise provided by statute, and the FAC fails to identify any such statute providing for governmental liability. (Gov. Code, § 815, subd. (a) ["Except as otherwise provided by statute ... a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person."]; see <i>Voris v. Lampert</i> (2019) 7 Cal.5th 1141, 1150 [conversion is a common law tort claim]; see also <i>County of Santa Clara v. Superior Court</i> (2023) 14 Cal.5th 1034, 1048 [the Government Claims Act's immunity and liability provisions are aimed at common law tort claims for money damages].) <u>3rd cause of action, negligent infliction of emotional distress (NIED).</u> The FAC fails to state facts sufficient to constitute the third cause of action for NIED. "Negligent infliction of emotional distress" "is not an independent tort, but the tort of negligence," "to which" "traditional elements of duty, breach of duty, causation, and damages apply." "[Citation.]" (<i>Downey v. City of Riverside</i> (2024) 16 Cal.5th 539, 547.) "[A] public entity cannot be held liable for common law negligence"; the FAC must specifically identify a statutory duty giving rise to governmental liability. (<i>McCarty v. State of California Dept. of Transp.</i>, <i>supra</i>, 164 Cal.App.4th at p. 977; Gov. Code, § 815, subd. (a); <i>Searcy</i>, <i>supra</i>, 177 Cal.App.3d at p. 802.) As discussed above, the FAC fails to identify any such statutory duty giving rise to governmental liability. <u>4th cause of action, private nuisance.</u> The FAC fails to state facts sufficient to constitute the fourth cause of action for private nuisance. "Nothing which is done or maintained under the express authority of a statute can be deemed a nuisance." (Civ. Code, § 3482.) Although its plain language refers to statutory authority, the immunity conferred by Civil Code section 3482 also applies to acts authorized by regulations and other express governmental approvals. (See <i>Williams v. Moulton Niguel Water Dist.</i> (2018) 22 Cal.App.5th 1198, 1205.) Here, the fourth cause of action arises from defendant's alleged delay and negligence in inspecting the subject property and its conduct in abating the nuisance (FAC ¶¶ 226-228), liability for which defendant is immune as discussed above. (See Gov. Code, §§ 815.2, subd. (b), 818.4, 818.6, 821.2, 821.4; Health & Saf. Code, §§ 17970.5, subd. (i), 17980, subds. (a), (c)(1)(A).) The court cannot see how this claim can be amended successfully given the above citations.

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		<u>5th cause of action, violation of the California Constitution, article I, section 1 (right to privacy).</u> The FAC fails to state facts sufficient to constitute the fifth cause of action for violation of the right to privacy under the California Constitution. (See <i>Hill v. National Collegiate Athletic Assn.</i> (1994) 7 Cal.4th 1, 35-40 [elements]; accord, <i>Sheehan v. San Francisco 49ers, Ltd.</i> (2009) 45 Cal.4th 992, 998 [same].) The FAC claims a right to privacy in plaintiff’s “reputation, unlawful detainer filings, utilities, and personal and real property.” (FAC ¶ 238.) Plaintiff’s alleged right to privacy in her “reputation” concerns defendant’s alleged dissemination of “falsehoods” that plaintiff had threatened violence and was “dangerous” to SCE and county departments involved in plaintiff’s eviction and the inspection/red-tagging of the premises. (<i>Id.</i> ¶¶ 144, 146, 150.) There is no legally protected right to “privacy” in one’s “reputation.” A “reputation” by definition does not constitute “private” information. Furthermore, in plaintiff’s 5/31/22 letter to OCCE, she admits that when Wells Fargo attempted to “self-help” by sending a van of people to “take over the house,” plaintiff called the sheriff who “advised [her] to post a sign [saying,] ‘Trespassers will be prosecuted and shot[,]’ which [she] did.” (FAC at Ex. 5 [5/31/22 letter].) Having placed a sign on the property stating that “trespassers” will be “shot,” plaintiff had no reasonable expectation of privacy in her “reputation” related to the subject matter of that sign to those who may visit the property as part of the County’s inspection and abatement efforts. There is also no right to privacy in one’s unlawful detainer filings. Access to court files and records in unlawful detainer actions filed as limited civil cases are restricted by statute under Code of Civil Procedure section 1161.2, not for privacy reasons but to reduce the number of postjudgment claims of right to possession containing false or fraudulent information. (Stats. 1991, Chap. 1007, § 1 (S.B. 892) [“There exists in the State of California a crisis due to unscrupulous eviction defense services which utilize records of court filings in civil cases to solicit and defraud tenants,” which “function by reviewing the previous day’s filings of unlawful detainer actions each day”; “[b]ecause of the crisis caused by unscrupulous eviction defense services, it is necessary to restrict public access to files” of limited civil UD actions].) Indeed, a party to the action, including a party’s attorney

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		(such as the landlord's counsel), can obtain a copy of the pleadings (Code Civ. Proc., § 1161.2, subd. (a)(1)), and anyone can obtain a party's UD records simply by, inter alia, providing the clerk with the names of at least one plaintiff, one defendant and the address (<i>id.</i>, § 1161.2, subd. (a)(1)(B)), or by showing "good cause," which includes the "gathering of newsworthy facts" by newspaper publishers and journalists. (<i>Id.</i>, § 1161.2, subd. (b)(1)(A).) As for plaintiff's right of privacy in "personal and real property" and "utilities," it is uncertain as to what is allegedly "private" here, and, in any event, the FAC also fails to allege an invasion of any such right. <u>6th cause of action, failure to perform mandatory duty (Gov. Code § 815.6).</u> The FAC fails to state facts sufficient to constitute the sixth cause of action for failure to perform mandatory duty under Government Code section 815.6. This cause of action is based on defendant's alleged failure to timely and properly abate unsafe housing as required by "Health & Safety Code §§ 17920.3, 17920.10, 17980.6 and Civil Code § 1941.1." (FAC ¶ 247; see <i>id.</i> ¶¶ 247-252.) As discussed above, section 815.6 provides that a public entity is liable for its failure to discharge a "mandatory duty," and a "mandatory duty" is necessary prerequisite for liability under this section. (<i>Haggis, supra</i>, 22 Cal.4th at p. 428.) The Health and Safety Code, however, expressly provides that a county's obligation to inspect for violations of sections 17920.3 (substandard building conditions) or 17920.10 (lead hazards) "shall not be construed to impose a mandatory duty pursuant to Section 815.6 of the Government Code, and shall not be construed to affect the availability of any immunity otherwise applicable to the city or county or its employees..." (<i>Id.</i>, § 17970.5, subd. (i).) As for Health and Safety Code section 17980.6, it too is only discretionary and does not impose any "mandatory" duties within the meaning of Government Code section 815.6. (<i>Fox v. County of Fresno, supra</i>, 170 Cal.App.3d 1238, at pp. 1243-1244 [the duties imposed by Health and Safety Code section 17980 et seq. are discretionary and not "mandatory" within the meaning of Government Code section 815.6].) Further, as discussed above, Government Code sections 818.6 and 821.4 render defendant immune from liability for the failure to make an inspection, or for the negligent inspection, of private property "for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a

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		hazard to health or safety.” (Gov. Code, §§ 818.6 [public entity], 821.4 [public employee].) The court cannot see how this claim can be amended successfully given the above citations. <u>7th cause of action, violation of due process (California and federal constitutions).</u> The FAC fails to state facts sufficient to constitute the seventh cause of action for violation of due process. To the extent plaintiff is attempting to allege a violation of due process under the <u>federal constitution</u>, the FAC fails to allege the deprivation of a liberty or property interest protected by the Constitution or the laws of the United States. (See <i>Las Lomas Land Co., LLC v. City of Los Angeles</i> (2009) 177 Cal.App.4th 837, 852-853 (<i>Las Lomas</i>); <i>Benn v. County of Los Angeles</i> (2007) 150 Cal.App.4th 478, 489 (<i>Benn</i>); see also <i>Hobbs v. City of Pacific Grove</i> (2022) 85 Cal.App.5th 311, 320 (<i>Hobbs</i>) [“Under the Fourteenth Amendment of the United States Constitution, the requirements of procedural due process apply to state action infringing liberty and property interests,” but the “range of interests protected by due process ... ‘is not infinite’”].) First, to the extent the claim is based on plaintiff’s leasehold interest (FAC ¶ 269), the FAC does not allege any facts as to how defendant deprived plaintiff of her rights under her lease (see FAC ¶¶ 369-373), and citing and red-tag tagging a property does not terminate a tenant’s rights under a lease in any event. (See <i>Erlach v. Sierra Asset Servicing, LLC</i> (2014) 226 Cal.App.4th 1281, 1292-1295.) Next, to the extent the claim is based on plaintiff’s purported “quiet title claim” or ownership interest to the back parcel of the property (FAC ¶ 269), the FAC fails to allege the existence of such a property interest. As discussed above, while the FAC alleges plaintiff has had a quiet title claim to the back parcel of the based on adverse possession since 2022, it alleges facts showing plaintiff’s possession and occupancy of the subject parcel was not in fact “adverse and hostile to [the owner]” for a continuous period of at least five years prior to 2022, defeating any purported property interest based on adverse possession. (<i>Nellie Gail, supra</i>, 4 Cal.App.5th at p. 1000 [adverse possession, elements]; see, e.g., FAC ¶¶ 16-18, 38-39, 126-127, 199 & Exs. 1 [tort claim at p. 4 (2010 mudslides over entire back of property) & ex. 1 (6/28/19, 8/15/19, and

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		3/25/21 “repair/property/repay demands”), 5; see also <i>id.</i> ¶¶ 19-24, 29-30.) As for plaintiff’s interest in her “utilities” (FAC ¶ 269), defendant ordered the electricity shut off on 7/22/22, after it red-tagged the property on 7/20/22, which was about a month after plaintiff had been already evicted from the premises on 6/29/22. (FAC ¶¶ 60, 77, 98, 112, 116, 136, Ex. 3.) A person does not have a fundamental liberty or property right to maintain the utilities at a property that the person has long been evicted from. As for plaintiff’s purported “<i>Erlach</i> paid relocation/return rights” (FAC ¶ 269)—this refers to a tenant’s rights to receive relocation benefits from the owner if the tenant is displaced/subject to displacement as a result of an order to vacate the property by a local enforcement agency “`as a result of a violation so extensive and of such a nature that the immediate health and safety of the residents is endangered....’ ” (<i>Erlach v. Sierra Asset Servicing, LLC</i> (2014) 226 Cal.App.4th 1281, 1293, quoting Health & Saf. Code, § 17975.) But the FAC shows plaintiff never had any such rights because, again, she was evicted from the property on 6/29/22, before defendant red-tagged it a month later and any such rights arose. (See FAC ¶¶ 60, 77, 98, 112, 136, Ex. 3.) And any claim would be against the landlord. As for plaintiff’s interest in her “reputation” (see FAC ¶ 269), there is no fundamental liberty or property right to one’s “reputation,” and it is entirely uncertain how defendant might have deprived plaintiff of her “reputation” without constitutional due process. As for plaintiff’s property interest in her “animals” (see FAC ¶ 269)—the FAC appears to allege that “Animal Control” was required to help plaintiff obtain her animals (“including a horse and chickens”) from the property upon her request (<i>id.</i> ¶¶ 155 [though plaintiff was able to retrieve her animals two days later], 177a)—but a person does not have a liberty or property right to Animal Control’s assistance in relocating their personal pets. Moreover, plaintiff’s alleged inability to retrieve her animals was the result of her landlord’s (Sunyata) successful eviction of plaintiff from the property (effected by the sheriff) on 6/29/22, pursuant to a UD judgment of possession in the landlord’s favor that the landlord obtained two months prior in April 2022. (See <i>id.</i> ¶¶ 136, 150, 175, 177.) At that point, the return of any personal property, including her animals, was

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		governed by the applicable landlord-tenant laws pertaining to a tenant’s right to reclaim property left at the premises. (See, e.g., Civ. Code, §§ 1965, 1980 et seq.) Plaintiff fails to explain how the County is responsible for her decision to leave her animals at the property at the time of her eviction, or her inability to obtain them until two days later under the laws governing her right to reclaim them. To the extent plaintiff is attempting to allege a violation of procedural or substantive due process under the <u>California Constitution</u>, plaintiff must identify a property interest or a benefit that is conferred by statute. “ ‘The “requirement of a statutorily conferred benefit limits the universe of potential due process claims: presumably not every citizen adversely affected by governmental action can assert due process rights; identification of a statutory benefit subject to deprivation is a prerequisite.” [Citation.]’ [Citations.]” (<i>Las Lomas, supra</i>, 177 Cal.App.4th at p. 855.) Here, plaintiff has not identified a statutory benefit subject to deprivation. As discussed above, plaintiff has not alleged the existence of a quiet title/adverse possession interest in the back parcel of the property and has therefore failed to allege the deprivation of due process with respect to any such alleged ownership right. Plaintiff also fails to allege facts suggesting defendant interfered with any statutory benefit to maintain her “utilities” at the property or “<i>Erlach</i> paid relocation/return rights” because, as discussed above, defendant did not shut off the electricity or red-tag the property until long after plaintiff had already been evicted by the landlord. (FAC ¶¶ 60, 77, 98, 112, 116, 136, Ex. 3.) As for plaintiff’s “animals”—again, this claim is based on Animal Control’s failure to help plaintiff retrieve her animals, but a person does not have a statutory benefit or right to Animal Control’s assistance in relocating her personal pets upon her eviction from a property. (See FAC ¶¶ 155, 177a.) Further, plaintiff’s alleged inability to retrieve her animals was the result of her landlord’s (Sunnyata) successful eviction of plaintiff from the property on 6/29/22, pursuant to a UD judgment of possession in the landlord’s favor obtained in April 2022. (See <i>id.</i> ¶¶ 136, 150, 175, 177.) Once plaintiff was evicted from the premises, the return of any personal property, including her animals, was governed by the applicable landlord-tenant laws pertaining to a tenant’s right to reclaim property left at the premises. (See, e.g., Civ. Code, §§ 1965, 1980 et seq.) Thus, any inability to retrieve her

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		animals following her eviction should be between her and her prior landlord. Finally, beyond alleging a protected property or liberty interest or a statutorily conferred benefit, a substantive due process claim under both the federal and California Constitutions further requires allegations of some form of outrageous or egregious conduct by a government actor constituting a true abuse of power. (<i>Galland v. City of Clovis</i> (2001) 24 Cal.4th 1003, 1032; <i>Hobbs, supra</i>, 85 Cal.App.5th at pp. 320-321 [substantive due process violation under the U.S. and Cal. Consts. requires some form of outrageous or egregious behavior].) The FAC does not allege any facts amounting to outrageous or egregious conduct by defendant that constitutes “a true abuse of power.” At worst, the FAC alleges defendant should have inspected, cited, and red-tagged the property sooner. But such conduct does not arise to the level of “outrageous or egregious behavior” necessary for a substantive due process claim. (See <i>Las Lomas, supra</i>, 177 Cal.App.4th at p. 856 [“Typical land use disputes involving alleged procedural irregularities, violations of state law and unfairness ordinarily do not implicate substantive due process.”]; <i>Bottini, supra</i>, 27 Cal.App.5th at p. 315 [“Even where state officials have allegedly violated state law or administrative procedures, such violations do not ordinarily rise to the level of a constitutional deprivation.”].) The court cannot see how this claim can be amended successfully given the above citations. 8th cause of action, inverse condemnation. The FAC fails to state facts sufficient to constitute the eighth cause of action for inverse condemnation. “To state a cause of action for inverse condemnation, the property owner must show there was an invasion or appropriation (a “taking” or “damaging”) [by a public entity] of some valuable property right which the property owner possesses ... and the invasion or appropriation directly and specially affected the property owner to his injury.” (City of Los Angeles v. Superior Court (2011) 194 Cal.App.4th 210, 221; accord, <i>Ventura29 LLC v. City of San Buenaventura</i> (2023) 87 Cal.App.5th 1028, 1037; <i>First Interstate Bank v. State of California</i> (1987) 197 Cal.App.3d 627, 635-636; see <i>Eli v. State of California</i> (1975) 46 Cal.App.3d 233, 235 [“Inverse condemnation is available to recover for loss of or damage to personal, as well as the more common case of real property.”].)

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		To the extent this cause of action is based on defendant's delay in issuing citations and/or red-tagging the property, a "delay" in enforcement does not somehow constitute a "taking" of a "property right" (much less a speculative <i>Erlach</i> right to return/relocation expenses that plaintiff did not yet have and which ultimately never arose). The "mischaracterizing [of] Plaintiff's portable pool" also does not constitute a "taking" of a "property right," and the FAC alleges that it was the owner (Sunyata/the Allens), rather than defendant, who "destroyed" the pool. (FAC ¶¶ 87, 126.) As for defendant's conduct in "demanding" or "allowing" the removal/destruction of plaintiff's "palm tree and other vegetation," and "allowing" the theft of other personal property—all of this occurred after defendant red-tagged the property on 7/20/22 and 8/2/22, and after plaintiff had already been evicted from the property as of 6/29/22. (See <i>id.</i> ¶¶ 112-117, 136.) The FAC fails to allege any facts showing it was County who "took" or "damaged" any of this personal property after they red-tagged the premises. Rather, plaintiff's claims with respect to her damaged/stolen property appear to entirely depend on plaintiff's and the owner's respective statutory duties to retrieve/protect such property following plaintiff's eviction. (See, e.g., Civ. Code, §§ 1965, 1980 et seq.; see also FAC at Ex. 1 [tort claim at ex. 1 thereto, where it lists plaintiff's "repair/property/repay demands" from 6/29/22 and thereafter].) Finally, to the extent the claim is based on defendant's alleged "taking" or damage to plaintiff's quiet title/adverse possession interest to the back parcel of the property, the allegations of the FAC show she had no such interest in the property, as discussed above. The court cannot see how this claim can be amended successfully given the above citations. <u>Requests for judicial notice.</u> Defendant's request for judicial notice is GRANTED. (See Evid. Code § 452, subd. (b).) Plaintiff's request for judicial notice is DENIED. Email communications with public personnel, the truth of the matters stated therein, and the truth of the matters stated in court filings are not proper matters of judicial notice. (See <i>LaChance v. Valverde</i> (2012) 207 Cal.App.4th 779, 783 [email communications with public department/agency personnel are not " '[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States,' of which judicial notice may be taken"]; <i>Kilroy v. State</i> (2004) 119 Cal.App.4th 140, 145-147 [court may

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		take judicial notice of the existence and contents of court records, but not the truth of the matters stated therein].) The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
54.	Naso v. Blackburn 2025-01519762	Defendants David Blackburn and CFG Investments, Inc.'s motion to strike portions of plaintiffs' Complaint is DENIED. (Code Civ. Proc., § 435, 436 [authorizing motion].) A motion to strike, like a demurrer, assumes plaintiffs' allegations as true. (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255 ["In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth"].) The Complaint alleges sufficient facts showing defendants' knowledge of mold, water intrusion, and other defects, including prior to plaintiffs' residency, and intentional failure to disclose or repair same despite multiple requests, sufficient to support punitive damages allegations at the pleading stage. (Civ. Code, § 3294, subd. (c)(1) [authorizing punitive damages for "malice," i.e. "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others"]; Complaint, ¶¶ 25, 35, 37, 50, 54, 58, 61, 64.) As to attorney fees, there is no point in striking them, as there is no requirement they be pled at all. (<i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497.) In any event, the Complaint adequately alleges a contractual basis for attorney fees. (Complaint, ¶ 73.) Moving defendants shall file an Answer to the Complaint within 10 days. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.
55.		
56.	Fernandez v. FCI Lender Services, Inc.	Plaintiff Virginia Fernandez's motion for attorney fees is GRANTED in part. Code of Civil Procedure section 425.16, subdivision (c)(1) provides that a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's

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	2024-01374564	fees and costs. The statute expressly defines “defendant” to include “cross-defendant” and “complaint” to include “cross-complaint,” meaning cross-defendants are fully within the statute's fee-shifting framework. Here, it is undisputed that Fernandez prevailed on only one of the two causes of action attacked in the cross-complaint. That fact does not strip Fernandez of the right to statutory attorney fees. A cross-defendant need not succeed in striking every challenged cause of action to be considered a prevailing party under section 425.16. (<i>Mann v. Quality Old Time Service, Inc.</i>, (2006) 139 Cal.App.4th 328.) The relevant inquiry is whether the defendant obtained a practical benefit from the motion. (<i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751.) Here, Fernandez was successful in knocking out the claim for abuse of process. That is not insignificant. The fact Fernandez prevailed on the abuse of process claim had the “practical benefit” of “narrowing the litigation, thus impacting discovery, motion practice, and trial preparation.” (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 232–233, <i>as modified on denial of reh'g</i> (Sept. 9, 2022).) When a defendant partially succeeds on an anti-SLAPP motion but the work on successful and unsuccessful causes of action was overlapping, the court should first determine the lodestar amount for hours expended on the successful claims, and then consider the defendant's relative success in achieving their objective—but if the claims are truly intertwined, no apportionment is required at all. (<i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328.) For example, in <i>Cruz v. Fusion Buffet, Inc.</i> (2020) 57 Cal.App.5th 221, the court found no abuse of discretion in declining to apportion fees where meal and rest break claims were inextricably intertwined with other wage and hour claims. The burden remains on the fee applicant to demonstrate that the claims share a common core of facts or are otherwise intertwined such that apportionment is impractical. (<i>Harman v. City and County of San Francisco</i> (2007) 158 Cal.App.4th 407.) Here, Fernandez was given the opportunity to meet her burden showing <i>how</i> the claims of abuse of process and unfair business practices share a common core of facts or were so intertwined that apportionment is impractical. But Fernandez only concludes that they are without further explanation. That’s not sufficient for Fernandez to carry the burden of proof.

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		Therefore, the court must apportion the requested fees. When apportionment is required, block billing makes it difficult or impossible for courts to determine how much time was spent on particular activities. (<i>In re Marriage of Nassimi</i> (2016) 3 Cal.App.5th 667, 695-696.) If counsel cannot define billing entries so as to meaningfully enlighten the court of those related to the compensable claim, the trial court may exercise its discretion in assigning a reasonable percentage to the entries or simply cast them aside. (Id.) Similarly, in <i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 441, the court affirmed a downward adjustment where many billings involved vague or block-billed entries, making it impossible to determine which hours were reasonably necessary for the successful anti-SLAPP motion versus other claims. With this framework in mind, the court turns to Fernandez's request. The court notes that Fernandez claims \$4,650.00 for 3 hours @ \$550 per hour for preparation of the instant motion. (See motion, page 5, line 23, ROA #588.) This appears to be a miscalculation. 3 hours @ \$550 per hour totals \$1,650.00, not \$4,650.00 (\$3,000 difference) Therefore, the requested \$16,057.96 should be reduced by \$3,000.00 to reflect the miscalculation. Further, Defoort is correct that Fernandez's claim that all requested hours relate to the successful motion does not withstand scrutiny. The \$1,833.33 for the time allocated on November 14 for work regarding restitution/d disgorgement does not relate to the successful motion. The remaining entries are too vague for the court to perform a more detailed analysis to confirm or refute whether the hours claimed relate to the successful motion; these entries are blockbilled as related to the SLAPP motion. Therefore, the court reduces the remaining claimed amount by 60% to reflect the court's apportionment of the hours spent on the successful motion. In short, the requested \$16,957.96 is reduced by \$3000, then further reduced by \$1833.33. The court then subtracts out the \$71.51 in fees/costs. The total for the loadstar is \$12,053.12. This number is then reduced by 60% (\$7,231.87) to bring the total of fees awarded to \$4,821.25, plus \$71.51 in costs for a total award of \$4892.76. As for Defoort's argument that unclean hands should bar Fernandez's award, an award of fees to a party prevailing on a

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		SLAPP motion is entitled to an award of fees. This award is mandatory. <i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613. The word “shall” in the statute leaves no room for the court to exercise equitable discretion to deny the fee award altogether based on the conduct of the prevailing defendant. Ca. Civ. Pro. Section 425.16. Fernandez shall give notice of this ruling.
57.	Bales v. Belenardo 2021-01201005	Plaintiffs Dean Bales and Laura Bales’s motion to strike or tax costs of defendants John and Susan Belenardo is GRANTED in its entirety. The Bales are determined to be the “prevailing parties” for purposes of an award of costs under Ca Civ. Pro. § 1032(b). Defendants are not entitled to costs. Defendants John and Susan Belenardo’s motion to strike or tax costs is GRANTED in part. Ca Civ. Pro. § 1032(b) provides that a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. The statute defines prevailing party at § 1032(a)(4) to include the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. This provision also states that if any party recovers other than monetary relief and in situations other than as specified, the prevailing party shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides. With regard to cost awards under the general Code of Civil Procedure prevailing party framework, there is a single prevailing party. <i>Sharif v. Mehusa, Inc.</i> (2015) 241 Cal.App.4th 185. This means that even where each side achieves success on different claims or phases, the court must ultimately identify one party as the overall victor — or determine that neither party prevailed — rather than splitting the designation between both sides. Here there is no dispute that the Belenardos prevailed on some issues in Phase I of the trial. There is also no dispute that Dean Bales prevailed against Susan Belenardo in Phase II of the trial.

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		Having considered the rulings and judgments entered in this matter, the court finds that Dean Bales is the prevailing party for purposes of the cost memorandum and C.C.P. § 1032. <u>Items the Belenardos seek to tax</u> A properly verified memorandum of costs is considered prima facie evidence that the costs listed were necessarily incurred. <i>Rojas v. HSBC Card Services Inc.</i> (2023) 93 Cal.App.5th 860. If items on a memorandum of costs appear to be proper charges on their face, those items constitute prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. <i>Id.</i> If the cost item is expressly allowed by statute and appears proper on its face, the burden is on the objecting party — i.e., the party moving to tax costs — to show the costs to be unnecessary or unreasonable. <i>Rozanova v. Uribe</i> (2021) 68 Cal.App.5th 392. Even where a cost item appears proper on its face, if the item is properly objected to, it is put in issue and the burden of proof shifts back to the party claiming the costs. <i>Ladas v. California State Auto. Assn</i> (1993) 19 Cal.App.4th 761. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court. Item #1 – Filing and motion fees - \$1,506.40 The Belenardos argue this item on the premise that since the Bales did not prevail on Phase I of the trial, the Bales should not recover <i>any</i> filing fees. The court has already determined that Dean Bales is the prevailing party. The Belenardos request the court, in the alternative, to strike the portion of fees attributable to claims on which plaintiffs did not prevail. This assertion doesn't properly raise an objection to the cost, and therefore doesn't require the Bales to provide greater detail. The motion is denied as to Item 1. Item #2 - Jury Fees - \$150.00. The Belenardos argue this item on the grounds that a jury was not utilized in Phase I of the trial. But the court looks at the whole case, not slices of it, when assessing costs. Jury fees are recoverable as costs even when a jury was not used in Phase I of a bifurcated trial. Under California Code of

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		Civil Procedure section 1033.5(a)(1), filing, motion, and jury fees are allowable as costs under section 1032. The motion is denied as to Item 2. Item #4 - deposition costs - \$9,800.00 The Belenardos argue this item should be reduced to zero because the depositions were taken solely to address the property and CC&R related claims of Phase I. The court is not persuaded that this argument properly puts at issue this item of cost. Further, in their own memorandum of costs, the Belenardos seek over \$10,000 for the same item, which is evidence of the cost being reasonable. The motion is denied as to Item 4. Item #5 - Service of process - \$1,843.40 The Belenardos persuasively challenge that the service of process fees, as a former party (the Deerfield Community Association) was also served, and ultimately dismissed without prejudice. (ROA 12, 623). The Belenardos have put this cost item at issue, requiring evidence from Dean Bales to support the claimed item. The Bales have failed to present evidence. The court grants the motion as to Item 5. Item #8 - Witness Fees - \$12,500.00 and Item #11 - Court reporter fees - \$1,700.00 The Bales do not oppose the motion to these items. The court grants the motion as to Items 8 and 11. Item #14 - Fees for electronic filing or service - \$1,000.00 The Belenardos argue this item on the premise that since the Bales did not prevail on Phase I of the trial, the Bales should not recover <i>any</i> electronic filing fees. The court has already determined that Dean Bales is the prevailing party. The Belenardos request the court, in the alternative, to strike the portion of fees attributable to claims on which plaintiffs did not prevail. This assertion doesn't properly raise an objection to the cost, and therefore doesn't require the Bales to provide greater detail.

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		The motion is denied as to Item 14. In sum, the Belenardos' motion to tax is GRANTED as to Item #5 in the amount of \$1,843.40; Item #8 in the amount of \$12,500.00; and Item #11 in the amount of \$1,700.00--for a total reduction of \$16,043.40. All further requested relief is DENIED. Dean Bales shall give notice of this ruling.
58.	Riggs v. Kingdom Hall of Jehovah's Witnesses 2026-01551506	Defendants Watchtower Bible and Tract Society of New York, Inc., and Christian Congregation of Jehovah's Witnesses, Inc.'s Special Motion to Strike is DENIED. <u>Defendants' Request for Judicial Notice:</u> The court finds Exhibit A to be immaterial to the determination of this motion. <u>Defendants' Objections to the Declaration of Jeff Grotke:</u> Objection No. 1 is immaterial. Objection Nos. 2-9 are SUSTAINED. <u>Defendants' Objections to the Declaration of Shelah Riggs:</u> Objection Nos. 10, 11, 18-21, 23 are SUSTAINED. Objection Nos. 12, 14-17, and 22 are OVERRULED. The Court will not consider the sur-reply filed by Plaintiff (ROA 122) as it was not authorized by the Court. Defendants' motion is timely and the Court has discretion to hear the motion. (See CRC, Rule 3.1326; <i>Karnazes v. Ares</i> (2016) 244 Cal.App.4th 344, 352 [finding that a defendant who successfully obtains a change of venue has 30 days to file an anti-SLAPP motion].) Defendants move to strike Plaintiff's Complaint on the grounds that it arises from protected activity under California's anti-SLAPP statute. Code of Civil Procedure section 425.16 provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1).) "Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant

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		has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute." (<i>Id.</i> at 89.) <u>Step One – Protected Activity</u> "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 396.) "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation. It follows, then, that courts may rule on plaintiffs' specific claims of protected activity, rather than reward artful pleading by ignoring such claims if they are mixed with assertions of unprotected activity." (<i>Id.</i> at 393.) There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc., § 425.16(e)): 1. Statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; 2. Statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; 3. Statements made in a place open to the public or a public forum in connection with an issue of public interest; or 4. Any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. Here, the Complaint alleges Defendants Watchtower Bible and Tract Society of New York, Inc. ("WTNY") and Christian

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		Congregation of Jehovah’s Witnesses, Inc. (“CCJW”) (the entities which provide supervisory roles over the Jehovah’s Witnesses’ faith) and Jehovah’s Witnesses Elders Ronald Wayne Clark (“Clark”), Stuart Taws (“Taws”), Jeffrey Brady (“Brady”), and James Edward Wynder (“Wynder”) failed to protect her from sexual abuse she suffered by her stepfather, Arnulfo Rene Lopez (“Lopez”) from the age of 9 (in 1983). When Plaintiff’s abuse was reported to church Elders, Plaintiff states she was forced to testify about the abuse in front of a group of male Elders who conducted an interview in an alleged “Star Chamber” environment in which she was asked detailed questions about the abuse. The Elders allegedly refused to report the abuse to authorities and warned Plaintiff not to seek help from her father. Lopez remained in Plaintiff’s home because divorce is not permitted in the Church for any reason. Defendants’ alleged treatment of Plaintiff caused her lifelong psychological trauma. Plaintiff asserts claims for negligence and sexual battery against Defendants. She also seeks to enjoin the Jehovah’s Witnesses from “subjecting any similarly situated minors to any inquiry in the present form,” and she seeks to impose a rule that “any inquiry must be made by a license professional.” Defendants contend Plaintiff’s Complaint arises from protected activity, i.e., WTNy and CCJW’s constitutionally protected management of its own membership and internal decision-making processes, including disciplinary or reinstatement processes. According to Defendants, Plaintiff’s entire Complaint centers around communications made in a religious context, which she seeks to restrain through this lawsuit. In <i>Castillo v. Pacheco</i> (2007) 150 Cal.App.4th 242, the Court of Appeal held that “[a]lthough section 425.16 provides a procedural vehicle for early scrutiny of claims against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States or California in connection with a public issue, it does not extend to claims against a person arising from any act of that person in furtherance of the person’s right of free exercise of religion.” (<i>Castillo v. Pacheco</i> (2007) 150 Cal.App.4th 242, 252.) Thus, to the extent Defendants argue their actions are purely religious, such activity is not protected. However, when an organization engages in speech activity, that activity may be protected so long as it concerns a public issue.

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		In opposition, Plaintiff argues that the gravamen of her claims are not based on a religious practice, but on Defendants’ alleged actions in concealing Lopez’s history of abuse, ratifying the abuse, failing to report the abuse to authorities, and allowing him to remain in her home after the abuse was discovered. This is not related to a protected activity or statements made by Defendants. In fact, Plaintiff seeks to hold them accountable for their silence and failure to act. Plaintiff’s Complaint also seeks to enjoin the practice of forcing juveniles to discuss their abuse in front of an alleged “Star Chamber” – a group of unlicensed individuals. It does not trigger any First Amendment rights because it does not regulate religious belief, religious expression, or any religious practice. Therefore, Plaintiff does not seek to restrain any protected activity. Plaintiff further contends Defendants cannot demonstrate such activities involve a public issue because the whole purpose of the inquiry was to conceal the information from the public and keep it out of the public eye. <i>FilmOn.com Inc. v. DoubleVerify Inc.</i> (2019) 7 Cal.5th 133, provides direction on how a court should analyze whether communications qualify for anti-SLAPP under the provision that protects any other conduct in furtherance of the exercise of the right to free petition or the right to free speech “in connection with a public issue or an issue of public interest.” “We first look to the content of the speech by asking what public issue or issue of public interest is implicated by the speech in question.” (Id. at 149.) And then we ask “what functional relationship exists between the speech and the public conversation about some matter of public interest.” (Id. at 149-150.) “[W]e examine whether a defendant—through public or private speech or conduct—participated in, or furthered, the discourse that makes an issue one of public interest.” (Id. at 151.) “[A] statement is made ‘in connection with’ a public issue when it contributes to—that is, ‘participat[es]’ in or furthers—some public conversation on the issue.” (Ibid.) In <i>Gazal v. Echeverry</i> (2024) 101 Cal.App.5th 34, the court considered whether private discussions that ensued after a homily and after plaintiff’s offer to donate funds for a house for a destitute family was an issue of public interest. The court held that although the private discussion between the parties concerned a public interest – homelessness – the discussion was not in connection with a public issue because it did not contribute to or further some public conversation on

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		the issue. The Complaint alleged a narrow conversation to help a family of five who were experiencing homelessness after an episode of domestic violence. (Id. at 43.) Here, the stated purpose of the “Star Chamber” inquiry was not to gather information to determine whether to report the child abuse to authorities or to discuss ways to prevent the abuse. Rather, Defendants contend their inquiry was a spiritual inquiry process and an internal decision-making process of Jehovah’s Witnesses, to discuss confidential information and to determine whether a sin was committed. (Motion at p. 15:1-5; 16:2-4.) Such discussion cannot be said to be in connection with a public issue or an issue of public interest, especially when such information is concealed and not used to further discussions about child abuse. Based on the foregoing, the Court finds Defendants have not made a threshold showing that Plaintiff’s causes of action arise from protected activity. As Moving Defendants failed at the outset, the court will not address Step Two of the SLAPP analysis. The motion is DENIED in its entirety. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Moving Defendants shall give notice of this ruling.
59.	The People of the State of California v. Experian Data Corp. 2019-01047183	Defendant Experian Data Corporation’s Motion for Summary Judgment is DENIED. As an initial matter, this motion is not proper. Parties are not at liberty to file multiple motions for summary judgment; leave of court is required. Defendant didn’t seek leave prior to filing the motion. Within the reply is defendant’s asserted position that it has been sandbagged (along with the court) because plaintiff stipulated to the filing of this motion. Whether there was a stipulation is not the question; the question is whether the court granted leave to file the motion. C.C.P. 437c(a)(5). The answer to that question is no. But because this motion is largely a repeat of the prior motion defendant filed (which J. Oberholzer denied), the court will turn to the merits, and likewise deny this motion. As J. Oberholzer stated: “Defendant has not produced evidence which establishes that Plaintiff was on inquiry notice of Experian’s failure to provide

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		notice to affected individuals, prior to the expiration of the statute of limitations. In contrast, evidence has been submitted which supports a finding inquiry notice occurred within 4-years of the filing of this action.” J. Oberholzer’s order goes on to describe the changing testimony provided by Defendant to Congress. And the Court of Appeals noted that “it can be inferred that on this date [March 18, 2014], the City Attorney was on inquiry notice that Experian did not know the affected individuals.” (<i>People v. Experian Data Corp.</i> (2024) 106 Cal. App. 5th 799, 805.) Further, as the Court of Appeals stated, as it relates to the changing position of Experian: “Thus, it would be particularly difficult to ascertain if or when Experian breached its disclosure duties.” (Id. at 810.) And based on a similar record presented in this motion and the matter considered by the Court of Appeals, “the record does not conclusively establish the discovery rule would not save the UCL claim.” (Id. at 813.) Turning to specific points raised by Experian, Defendant argues that Plaintiff bears a burden to demonstrate it acted with reasonable diligence to discover Defendant’s wrongdoing. This argument misstates the discovery rule. “Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period ... The discovery rules only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807-808.) The issue of reasonable diligence is pertinent to establishing when the relevant actors should have inquiry notice of the defendant’s wrongdoing. Here, Plaintiff has made a sufficient showing that there was no reason to suspect that Defendant would fail to notify affected individuals of the security incident until Defendant publicized its lack of awareness of the identity of the affected individuals. Thus, it is not relevant to the inquiry here that Plaintiff did not become actually aware of the claims alleged here until December of 2017. Defendant’s evidentiary showing regarding investigations undertaken by other investigatory bodies regarding the security incident and Ngo’s identity theft scheme do not, as a matter of law, defeat Plaintiff’s own theory regarding inquiry notice. These competing theories and the evidence in support of each, must be assessed in a trial

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		setting, where the finder of fact can weigh evidence and assess credibility. Since there is a triable issue of fact regarding when Plaintiff was on inquiry notice of Defendant's alleged violation of Civ. Code §1798.82, summary judgment is not warranted. The court need not reach either party's evidentiary objections, as the evidence objected to is immaterial to the foregoing ruling. Plaintiff shall provide notice of this ruling.
60.	Atkins v. Hoag Memorial Hospital Presbyterian 2025-01468528	<u>Motion for Leave to Amend [defendants Dean Albert Le, M.D., and Saddleback Valley Neuroscience Medical Group dba Saddleback Neurology]</u> Plaintiff Sonia Atkins' motion for leave to allege punitive damages against defendants Dean Albert Le, M.D., and Saddleback Valley Neuroscience Medical Group dba Saddleback Neurology, is DENIED, as plaintiff has not provided sufficient admissible evidence to show a substantial probability that she will prevail on a claim for punitive damages pursuant to Civ. Code, § 3294. (Code Civ. Proc., § 425.13, subd. (a) ["In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed," upon "a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code"]; <i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 719-720 ["the gravamen of section 425.13(a) is that the plaintiff may not amend the complaint to include a punitive damages claim unless he both states and substantiates a legally sufficient claim ... substantiation of a proposed punitive damages claim occurs only where the factual recitals are made under penalty of perjury and set forth competent admissible evidence within the personal knowledge of the declarant"]; Civ. Code, § 3294, subd. (a) ["In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant"];

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		<i>Aquino v. Superior Court</i> (1993) 21 Cal.App.4th 847, 854-855 ["the trial judge in making its ruling as a matter of law should apply the standard of clear and convincing evidence, since that is the standard plaintiffs would ultimately have to meet in proving entitlement to punitive damages ... [t]hus, a prima facie case of entitlement to punitive damages must meet the standard that plaintiffs will be likely to prevail by showing malice, oppression, or fraud by clear and convincing evidence"]; <i>Looney v. Superior Court</i> (1993) 16 Cal.App.4th 521, 537 ["Since petitioners' ultimate burden at trial will be to satisfy the jury by clear and convincing evidence that defendants were guilty of malice, oppression or fraud ... then a determination of whether a prima facie case exists will have to be judged by that same standard"]; see also <i>id.</i> at 539-540 [in ruling on a Section 425.13 motion, "the trial court will have to be satisfied that petitioners' evidentiary showing rises to that level"].) Defendants' evidentiary objection to ¶¶ 25 and 32 of plaintiff Sonia Atkins' supporting declaration are SUSTAINED, on grounds of lack of foundation. (Evid. Code, §§ 720, subd. (a) ["A person is qualified to testify as an expert if he has special knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates ... [a]gainst the objection of a party, such special knowledge, skill, experience, training, or education must be shown before the witness may testify as an expert"], 801, subd. (a) ["If a witness is testifying as an expert, his testimony in the form of an opinion is limited to such an opinion as is ... [r]elated to a subject that is sufficiently beyond common experience that the opinion of an expert would assist the trier of fact"]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 864 ["Speculation ... is not evidence"].) Defendants' evidentiary objection to ¶ 29 of the Atkins Decl. is SUSTAINED as to the portion reading "it contained the same data, the same numerical results, and the same wave forms as the first version," on grounds of lack of foundation. (Evid. Code, §§ 720, subd. (a), 801, subd. (a).) Defendants' evidentiary objection to ¶ 46 of the Atkins Decl. is SUSTAINED as to the portion reading "preserve the authentic report" as lacking foundation. (Evid. Code, §§ 720, subd. (a), 801, subd. (a).) Defendants' evidentiary objection to ¶ 50 of the Atkins Decl. is SUSTAINED as to the portion reading "my true EMG/NCS results" as lacking foundation. (Evid. Code, §§ 720, subd. (a), 801, subd. (a).) Defendants' evidentiary objection to ¶ 53 of the Atkins Decl. is SUSTAINED as to the portion

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		reading “my true EMG/NCS results” as lacking foundation. (Evid. Code, §§ 720, subd. (a), 801, subd. (a).) Defendants’ evidentiary objection to ¶ 54 of the Atkins Decl. is SUSTAINED as to the first sentence, on grounds of lack of foundation. (Evid. Code, §§ 720, subd. (a), 801, subd. (a).) Defendants’ remaining evidentiary objections are OVERRULED. Plaintiff has not presented sufficient admissible evidence showing that the testing and reports provided by defendants contained results, data, and/or conclusions belonging to another patient. Plaintiff’s admissible evidence at best shows that 2 of the four pages of the report initially listed another patient’s name (Atkins Decl., ¶¶ 15-18). However, absent admissible evidence, as opposed to speculation, that the actual results are inaccurate or altered, plaintiff has not presented sufficient evidence satisfying the requirements for the instant motion. <u>Motion for Leave to Amend [defendant Hoag Memorial Hospital Presbyterian]</u> Plaintiff Sonia Atkins’ motion for leave to allege punitive damages against defendant Hoag Memorial Hospital Presbyterian [Hoag] is DENIED. (Code Civ. Proc., § 425.13 [authorizing motion].) Plaintiff’s currently operative Second Amended Complaint [SAC] already alleges punitive damages against all defendants. Other defendants previously successfully moved to strike plaintiff’s punitive damages allegations in the SAC. (ROA 218 [2-9-26 minute order], 234 [3-9-26 minute order].) However, Hoag admits it never did so. (Opposition [ROA 273] at 2:18-27.) Since the SAC already alleges punitive damages against this defendant, which were not challenged via a motion to strike, the instant motion is unnecessary. <u>Motion for Leave to Amend [defendants Memorialcare Medical Foundation, Memorialcare Medical Group, and Ziba Ranjbaran, M.D.]</u> Plaintiff Sonia Atkins’ motion for leave to allege punitive damages against defendants Memorialcare Medical Foundation [“MCMF”], Memorialcare Medical Group [“MCMG”], and Ziba Ranjbaran, M.D. is DENIED. (Code Civ. Proc., § 425.13 [authorizing motion].) While these defendants have not lodged any evidentiary objections, plaintiff’s declaration and evidence at best shows

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		that defendants failed to provide waveform data; however, plaintiff's evidence does not show that they did so intentionally, nor otherwise amount to clear and convincing evidence as required. (Civ. Code, § 3294, subd. (a) ["In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant"]; <i>Aquino v. Superior Court</i> (1993) 21 Cal.App.4th 847, 854-855 ["the trial judge in making its ruling as a matter of law should apply the standard of clear and convincing evidence, since that is the standard plaintiffs would ultimately have to meet in proving entitlement to punitive damages ... [t]hus, a prima facie case of entitlement to punitive damages must meet the standard that plaintiffs will be likely to prevail by showing malice, oppression, or fraud by clear and convincing evidence"]; <i>Looney v. Superior Court</i> (1993) 16 Cal.App.4th 521, 537 ["Since petitioners' ultimate burden at trial will be to satisfy the jury by clear and convincing evidence that defendants were guilty of malice, oppression or fraud ... then a determination of whether a prima facie case exists will have to be judged by that same standard"]; see also <i>id.</i> at 539-540 [in ruling on a CCP 425.13 motion, "the trial court will have to be satisfied that petitioners' evidentiary showing rises to that level"].) Further, plaintiff has not provided sufficient evidence to support punitive damages liability on the part of the entity defendants. (Civ. Code, § 3294, subd. (b); <i>CRST, Inc. v. Superior Court</i> (2017) 11 Cal.App.5th 1255, 1273, citing <i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 576-577 ["principal liability for punitive damages [does] not depend on employees' managerial level, but on the extent to which they exercise substantial discretionary authority over decisions that ultimately determine corporate policy ... to establish that an individual is a managing agent, a plaintiff seeking punitive damages must show that 'the employee exercised substantial discretionary authority over significant aspects of a corporation's business'"].) <u>Motion for Summary Adjudication [defendants Dean Albert Le, M.D., and Saddleback Valley Neuroscience Medical Group dba Saddleback Neurology]</u> The motion by defendants Dean Albert Le, M.D. and Saddleback Valley Neuroscience Medical Group doing business as Saddleback Neurology for summary adjudication of plaintiff

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		Sonia Atkin's 1st cause of action for fraudulent concealment is GRANTED. (Code Civ. Proc., § 437c, subd. (f) [authorizing summary adjudication].) Moving parties have met their initial burden of presenting evidence sufficient to show that plaintiff cannot establish the essential elements of intentional concealment of material facts. (Code Civ. Proc., § 437c, subd. (p)(2) [burden]; Moving Parties' Separate Statement, Fact Nos. 2-4; Le Decl., ¶ 9-11 [the "whited out" portions in plaintiff's original EMG/NCV testing report were due to his failure to replace plaintiff's name in the template on all pages when preparing the report, which his staff noticed and corrected, and that both the first and second versions of the report are otherwise true and accurate, containing plaintiff's data], 13 [explaining alleged discrepancy regarding observation of scar].) Plaintiff has not met her shifted burden to present evidence sufficient to create a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2) [burden].) Plaintiff contends that the two pages with the wrong patient's name in fact contained someone else's data, but fails to present evidence showing this was the case. Rather, plaintiff relies on inferences and speculation, which is insufficient to create triable issues of material fact. (<i>Crouse v. Brobeck, Phleger & Harrison</i> (1998) 67 Cal.App.4th 1509, 1524 [once a party seeking summary judgment / adjudication has met its initial burden, "[a] party cannot avoid summary judgment based on mere speculation and conjecture [citation], but instead must produce admissible evidence raising a triable issue of fact"]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 864 ["Speculation ... is not evidence"]; <i>Joshi v. Fitness International, LLC</i> (2022) 80 Cal.App.5th 814, 823 ["The opposing party may rely upon inferences, but those inferences must be reasonably deducible from the evidence, and not such as are derived from speculation, conjecture, imagination, or guesswork;" internal citation and quotation marks omitted]; <i>Isner v. Falkenberg/Gilliam & Associates, Inc.</i> (2008) 160 Cal.App.4th 1393, 1398 ["Where all of the evidence presented by the plaintiff shows the existence of an element of the offense only as likely as or even less likely than the nonexistence of that element, the court must grant the defendant's motion for summary judgment because a reasonable trier of fact could not find for the plaintiff in such a case"].) Similarly, plaintiff's credibility arguments are not grounds to deny the motion, absent direct evidence sufficient to dispute moving parties' evidence, which is not present. (Code Civ.

[illegible]

